3. It added a new Part IX-B in the Constitution which is entitled as "The Co-operative Societies" (Articles 243-ZH to 243-ZT).

The new Part IX-B contains various provisions to ensure that the co-operative societies in the country function in a democratic, professional, autonomous and economically sound manner. It empowers the Parliament in respect of multi-state cooperative societies and the state legislatures in respect of other co-operative societies to make the appropriate law.

CRITICISM OF THE CONSTITUTION

The Constitution of India, as framed and adopted by the Constituent Assembly of India, has been criticized on the following grounds:

1. A Borrowed Constitution

The critics opined that the Indian Constitution contains nothing new and original. They described it as a 'borrowed Constitution' or a 'bag of borrowings' or a 'hotch-potch Constitution' or a 'patchwork' of several documents of the world constitutions. However, this criticism is unfair and illogical. This is because, the framers of the Constitution made necessary modifications in the features borrowed from other constitutions for their suitability to the Indian conditions, at the same time avoiding their faults.

While answering the above criticism in the Constituent Assembly, Dr. B.R. Ambedkar, the Chairman of the Drafting Committee, said: "One likes to ask whether there can be anything new in a Constitution framed at this hour in the history of the world. More than hundred years have rolled over when the first written Constitution was drafted. It has been followed by many countries reducing their constitutions to writing. What the scope of a Constitution should be has long been settled. Similarly, what are the fundamentals of a Constitution are recognized all over the world. Given these facts, all Constitutions in their main provisions must look similar. The only new things, if there can be any, in a Constitution framed so late in the day are the variations made to remove the faults and to accommodate it to the needs of the country. The charge of producing a blind copy of the Constitutions of other countries is based, I am sure, on an inadequate study of the Constitution".[13]

2. A Carbon Copy of the 1935 Act

The critics said that the framers of the Constitution have included a large number of the provisions of the Government of India Act of 1935 into the Constitution of India. Hence, they called the Constitution as a "Carbon Copy of the 1935 Act" or an "Amended Version of the 1935 Act". For example, N. Srinivasan observed that the Indian Constitution is "both in language and substance a close copy of the Act of 1935". Similarly, Sir Ivor Jennings, a British Constitutionalist, said that "the Constitution derives directly from the Government of India Act of 1935 from which, in fact, many of its provisions are copied almost textually".

Further, P.R. Deshmukh, a member of the Constituent Assembly, commented that "the Constitution is essentially the Government of India Act of 1935 with only adult franchise added".

The same Dr. B.R. Ambedkar answered the above criticism in the Constituent Assembly in the following way: "As to the accusation that the Draft Constitution has reproduced a good part of the provisions of the Government of India Act, 1935, I make no apologies. There is nothing to be ashamed of in borrowing. It involves no plagiarism. Nobody holds any patent rights in the fundamental ideas of a